

- Seeks a judicial determination that any Estate Planning Documents are invalid or the product of fraud, forgery, undue influence, menace, duress, or a lack of capacity;
- Seeks a judicial determination to change the characterization of any Trust Property;
- Files a suit against one or both Settlers, any Trustee, or any trust, related to any creditor claim in the probate estate of either Settlor after that creditor claim has been presented and rejected;
- Takes any other action to divest or divert any interest created by or controlled by this document or any Estate Planning Document, whether vested or contingent, present or future.

The Trustee is authorized and empowered to defend any violation of this Section or other contest or attack on this Trust, at the expense of the Trust. If any portion of this Section is deemed unenforceable under applicable law, for any reason, then the Trustee is authorized to enforce this Section to the maximum extent permitted by applicable law.

If any purported beneficiary contests the validity of all or any portion of this document or does any of the acts listed above without probable cause, then any benefits provided to such purported beneficiary shall be voided and any property that would otherwise pass to such purported beneficiary will instead be distributed with the Residue pursuant to Article 4. If such purported beneficiary is member of any class to which distributions may be made pursuant to Article 4 or any other Article of this document, such purported beneficiary and the heirs and descendants of such purported beneficiary will cease to be included as a member of any such class.

Exhibit 1, Clause H, pg. 19.

Because there is no evidence showing undue influence or lack of capacity, the Court is thus unable to determine whether Petitioner has sufficient probable cause to bring the Petition, such that the No Contest clause is inapplicable.

2. PR0000571 In the Matter of James Kraemer

No appearances are required. The Petition for final distribution on waiver of accounting and for payment of administrator fees, attorney fees, and costs advanced by attorney, is granted as prayed.